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| CASE #      | CASE NAME                                  | HEARING NAME                                 |
|-------------|--------------------------------------------|----------------------------------------------|
| CVMV2604308 | GUZMAN VS<br>WAWANESA<br>INSURANCE COMPANY | PETITION FOR COMPROMISE OF<br>DISPUTED CLAIM |

**Tentative Ruling:**

No Tentative Ruling. Matter to heard in open court. According to case management system, service upon Respondent is not completed.

2.

| CASE #      | CASE NAME       | HEARING NAME                   |
|-------------|-----------------|--------------------------------|
| CVME2402823 | MOTON VS GIBSON | MOTION TO COMPEL<br>COMPLIANCE |

**Tentative Ruling:**

See 3 below.

3.

| CASE #      | CASE NAME       | HEARING NAME                                                                                                            |
|-------------|-----------------|-------------------------------------------------------------------------------------------------------------------------|
| CVME2402823 | MOTON VS GIBSON | MOTION TO COMPEL: FURTHER<br>ANSWERS/RESPONSES TO<br>INTERROGATORIES FURTHER<br>RESPONSES TO FORM<br>INTERROGATORY 15.1 |

**Tentative Ruling:**

**Summary of Rulings:**

- (1) **The Court denies** Plaintiff's Motion to Compel Further Responses to FROG No. 15.1. **The Court denies** Plaintiff's Request for Monetary Sanctions.
- (2) **The Court continues** the hearing on Plaintiff's Motion to Compel Compliance. **The Court orders** Defendant to file substantive opposition no later than nine (9) court days before the continued hearing date and any reply no later than five (5) court days before the continued hearing date.

**Factual/Procedural Context**

Plaintiff Natalie Mary Moton ("Plaintiff") operates a working ranch in Temecula known as Namaste Farms where she has specialized in the production of wool, fiber, and wool products. (Compl. ¶ 6.) Plaintiff and Defendant Joni Gibson ("Defendant") are neighbors involved in a related title dispute—*Moton v. The Ark, LLC*, Case No.

CVSW2204328, filed in 2022—in which the parties stipulated that Defendant is not a good faith purchaser of property as the purchase took place while Defendant knew that Plaintiff has a claim to the property. (*Id.* at ¶¶ 7–9.)

Plaintiff alleges that beginning around September 3, 2024, Defendant began posting false claims on social media that animals at Namaste Farms, including dogs, were abused daily. (*Id.* at ¶ 11, Ex. A.) The posts included photos of an emaciated sheep that did not belong to Plaintiff and lacked any USDA ear tag, and Defendant posted a link to Namaste Farms’ homepage to encourage others to repeat the allegations. (*Id.* at ¶ 12.)

On September 6, 2024, Riverside County Animal Control and the Sheriff’s Department investigated and determined the allegations were “unfounded,” closing the investigation, as confirmed in the video transcript where the Sergeant of the Animal Control agreed the case was unfounded. (*Id.* at ¶ 15, Ex. B.) Plaintiff alleges that despite this, Defendant doubled down on September 7, 2024, falsely claiming Plaintiff had “swapped out” animals before investigators arrived, and removed the exonerating animal control video from her feed on September 11, 2024, while reposting the original false post and refusing to remove it or issue a retraction. (*Id.* at ¶ 16, Ex. C.)

On September 18, 2024, Plaintiff filed a Complaint against Defendant and her husband, Oliver Gibson (collectively, “Defendants”), asserting two causes of action: (1) defamation (libel per se), and (2) defamation (trade libel). Plaintiff seeks a preliminary and permanent injunction against Defendant from engaging in the alleged defamation, along with an order to take down the alleged defamatory posts. Plaintiff also seeks compensatory and general damages in an amount not less than \$1,000,000.00.

On February 14, 2025, Defendants filed their Answer to the Complaint, denying each and every allegation and asserting six affirmative defenses: (1) truth, (2) opinion, (3) Plaintiff is a public figure, (4) harm was caused by Plaintiff’s actions, not Defendants’, (5) Defendants’ actions were based on facts as known to them, and (6) mitigation.

On January 13, 2026, Plaintiff propounded several sets of discovery on Defendant, including the Form Interrogatory (“FROG”), Set One, and Requests for Production of Documents (“RFP”), Set Two. As relevant to the current motions, FROG No. 15.1 asked Defendant to identify each denial of a material allegation and each special or affirmative defense in her pleadings, and for each state the facts, witnesses, and documents supporting it. RFP Nos. 18–25 sought digital copies of all photos previously produced in discovery by Defendant with all preserved metadata, all documents that she identified in her responses to the FROGs concurrently served and the documents identified in her responses to Special Interrogatories (“SROG”).

Defendant served unverified responses to both sets on March 3, 2026, with verifications received on March 16, 2026. As to FROG No. 15.1, the initial response contained only objection, with no substantive answer. As to RFP Nos. 18–25, Defendant agreed, subject to privilege objections, to produce documents responsive to each request, including native digital photographs with preserved metadata and executed

witness declarations, Riverside County Code Enforcement records, and native digital photographs of the animals.

On March 5, 2026, Plaintiff sent a meet-and-confer letter addressing the deficiencies in Defendant's responses. On March 19, 2026, Defendant served a supplemental response to FROG No. 15.1, denying the material allegations generally and listing six affirmative defenses. However, rather than stating supporting facts, witnesses, and documents, it invoked CCP § 2030.230 to incorporate by reference Defendant's supplemental responses to SROG Nos. 1–18. As to RFP, defense counsel emailed on March 20, 2026, apologizing for the delay, but no documents followed.

On March 27, 2026, Plaintiff sent another meet-and-confer letter addressing both deficiencies. Plaintiff sent follow-up emails on April 6 and 13, 2026, with no response and no production received. On April 22, 2026, Plaintiff filed the two motions at issue—motion to compel further response to FROG No. 15.1 and motion to compel compliance regarding RFP.

After the motions were filed, Defendant served a further supplemental response to FROG No. 15.1 via email on May 22, 2026, which removed the section 2030.230 cross-references and provided substantive facts, witnesses, and documents. Plaintiff rejected it the same day as still inadequate for failing to identify specific material allegations. No production of the RFP documents has been made.

#### *Motion to Compel Further Responses to FROG*

Plaintiff seeks to compel further responses to FROG No. 15.1, arguing that Defendant's supplemental response is non-Code-compliant because it asserts affirmative defenses in a list without stating facts, persons with knowledge, or identifying documents. Plaintiff argues that responses to FROGs must be as complete and straightforward as possible as the information reasonably available permits under CCP § 2030.220, which Defendant failed to do. Plaintiff seeks monetary sanctions against Defendant in the amount of \$1,110.00.

In opposition, Defendant argues that the motion is moot because she served a further supplemental response in May 2026, after the motion was filed, providing facts, witnesses, and documents supporting her denials and defenses. Defendant contends that a "material allegation" is defined by statute as "one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense." Because Plaintiff's Complaint hinges on two essential, material allegations—(1) that Defendant made false statements of fact, and (2) that those statements interfered with Plaintiff's business—Defendant argues she properly addressed those overarching allegations and that forcing her to artificially parse Plaintiff's pleading and copy-and-paste the exact same text dozens of times serves no legitimate discovery purpose. Defendant argues sanctions are unwarranted because she acted with substantial justification.

In reply, Plaintiff argues that the motion is not moot, contending that supplemental response served while a motion is pending does not divest the Court of

authority to rule. Plaintiff asserts that the further supplemental response is still not Code-compliant because it fails to identify material facts of the Complaint and gives only conclusory statements, and that Defendant's reliance on CCP § 2030.230 to refer Plaintiff to her SROG responses is expressly prohibited under the Code. Plaintiff also argues monetary sanctions remain available even where requested discovery is provided after the motion is filed.

### *Motion to Compel Compliance*

Plaintiff moves under CCP § 2031.320 for an order compelling Defendant to produce documents she agreed to produce in her verified responses to RFP, Set Two. Plaintiff explains that on March 3, 2026, Defendant served unverified responses agreeing to produce responsive documents, with verifications received March 16, 2026, but Defendant never produced the documents despite repeated promises. Plaintiff cites CCP § 2031.320 and *Standon Co. v. Superior Court* (1990) 225 Cal.App.3d 898, 903 for the rule that all that must be shown is the responding party's failure to comply as agreed. Plaintiff seeks monetary sanctions against Defendant in the amount of \$1,410.00, noting this is the second motion plaintiff has had to bring to obtain records, with prior discovery orders and sanctions already entered against defendants.

Defendant does not oppose on the merits. Instead, she requests a continuance based on lack of service, asserting that her counsel's firm has no record of ever having received the motion and neither her counsel nor anyone else in the firm has ever received the motion. Defendant argues her counsel's firm has a very specific routine for calendaring hearings and uploading received documents, and that nothing was received or calendared in this matter.

## **Analysis**

### **1. Motion to Compel Further Responses to FROG No. 15.1<sup>1</sup>**

A propounding party may move to compel a further response to an interrogatory where "[a]n answer to a particular interrogatory is evasive or incomplete," "[a]n exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate," or "[a]n objection to an interrogatory is without merit or too general." (CCP § 2030.300(a)(1)–(3).) Such motion "shall be accompanied by a meet and confer declaration under Section 2016.040"—a requirement satisfied here. (CCP § 2030.300(b)(1); Zemming Decl. ¶ 3 [telephone discussion in April 2026].) "Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits." (CCP § 2030.220(a).) Monetary sanctions "shall" be imposed against a

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<sup>1</sup> Defendant served the further supplemental response on May 22, 2026, after Plaintiff's April 22, 2026 motion was filed, and the parties did not meet and confer regarding the further supplemental response itself before the hearing. However, because the parties have fully briefed the controlling sufficiency question and the May 22, 2026 response is in the record, the Court declines to find the motion moot and addresses it on the merits. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 409 [post-filing supplemental response does not divest the trial court of authority to rule, and the court has discretion to evaluate sufficiency].)

party who unsuccessfully makes or opposes a motion to compel further responses absent substantial justification or other circumstances making sanctions unjust. (CCP § 2030.300(d).)

FROG No. 15.1 directs Defendant to identify each denial of a material allegation and each special or affirmative defense in her pleadings, and for each state supporting facts, witnesses, and documents. The parties dispute what “material allegation” means. Plaintiff contends that the further supplemental response remains non-Code-compliant because (1) it fails to identify the specific material allegations of the Complaint that Defendant denies, (2) the factual recitations are conclusory rather than responsive, and (3) the witnesses and documents are listed without being tied to the specific denials they support.

Defendant counters that a “material allegation” is statutorily defined as “one essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient as to that claim or defense,” and that Plaintiff’s Complaint hinges on two material allegations: (1) that Defendant made false statements of fact, and (2) that those statements interfered with Plaintiff’s business, which her further supplemental response addresses along with each of her six affirmative defenses. Defendant’s argument has merit.

FROG No. 15.1 requires identification of each denial of a material allegation—*i.e.*, each denial of an essential element and the supporting facts, witnesses, and documents for each. Plaintiff’s view that Defendant must identify each “specific material allegation” of the Complaint reads “material allegation” more broadly than section 431.10(a) defines it. The statute confines a “material allegation” to one “essential to the claim or defense and which could not be stricken from the pleading without leaving it insufficient.” (CCP § 431.10(a).) For Plaintiff’s defamation causes of action, the essential allegations are that Defendant made false statements of fact and that those statements interfered with Plaintiff’s business—both of which Defendant has identified and denied, with subpart (a)/(b)/(c) support tied to the denial and to each of the six pleaded affirmative defenses.

By way of example, on the denial, Defendant states the supporting facts that “[t]he statements made by [Defendant] regarding the condition of Plaintiff’s animals and property were factually true, and Plaintiff’s business operations were illegal and unpermitted,” and identifies eleven (11) witnesses by name plus County Code Enforcement and Animal Control officers, with documents including written declarations from neighbors, native digital photographs of the animals, and Riverside County Code Enforcement records and complaints. (Schattl Decl. ¶ 5, Ex. A.) The public figure defense is supported by specific facts (*i.e.*, that she voluntarily injected herself into the public spotlight by starring in a National Geographic television show centered on her farm operations) and identified documents. (*Id.*) The harm causation defense is supported by facts that Plaintiff operated unpermitted short-term rentals and an unlicensed dog boarding facility utilizing an illegal septic system that leached into the ground, in direct violation of Riverside County ordinances, with corresponding records identified. (*Id.*) The mitigation defense is similarly supported. (*Id.*) Each of the remaining

defenses—truth, opinion, and actions based on facts known—is supported by parallel subpart (a)/(b)/(c) recitations.

Plaintiff's remaining objection—that subpart (b) lists witnesses without their “contact information”—is not without force, but the named witnesses are the parties, identifiable neighbors, and County officers whose contact information is readily ascertainable, and Defendant cured the more substantive deficiency before the hearing. The Court therefore declines to order a further response on this basis.

Based on the foregoing, the Court finds the further supplemental response to be sufficient. The earlier section 2030.230 cross-reference to SROG responses has been removed and replaced with substantive recitations of supporting facts, witnesses, and documents tied to the denial of the material allegations and to each pleaded affirmative defense. The Court therefore denies Plaintiff's motion to compel further responses to FROG No. 15.1.

Plaintiff's request for \$1,110.00 in monetary sanctions is also denied. Monetary sanctions are mandatory against the party who unsuccessfully makes a motion to compel further responses absent substantial justification or other circumstances making sanctions unjust. (CCP § 2030.300(d).) Because Plaintiff is the unsuccessful party, Plaintiff is not entitled to sanctions.

## **2. Motion to Compel Compliance**

CCP § 2031.320(a) authorizes the Court to compel compliance where a party that served a statement of compliance “thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance.” Unlike a motion to compel further responses, a section 2031.320 compliance motion does not require a separate statement or meet-and-confer declaration. (*Standon Co. v. Sup. Ct.* (1990) 225 Cal.App.3d 898, 903.) The moving party's burden is narrow: once the responding party has agreed to produce, “there is no longer any dispute over the right to inspect the documents or objects,” and the only question is whether the responding party has done what it promised. (*Id.*) Monetary sanctions are mandatory against the unsuccessful party absent substantial justification or other circumstances making sanctions unjust. (CCP § 2031.320(b).)

Plaintiff moves to compel production of documents Defendant agreed to produce in her verified responses to RFPs, arguing that no documents have been produced despite multiple promises. Defendant does not oppose on the merits. Defense counsel represents that the firm has no record of ever having received the motion and that no other attorney in the firm has ever received the motion. Defendant asks only that the motion be heard on its merits.<sup>2</sup>

In the interest of resolving the motion on a complete record, the Court continues the hearing on the motion to compel compliance, and orders Defendant to file and serve

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<sup>2</sup> Plaintiff disputes Defendant's non-receipt account, submitting a declaration from her counsel's legal assistant that the April 22, 2026 service email was sent to both defense counsel and his legal assistant and that no bounce-back was received. (Townsend Decl. ¶¶ 2–4.)

any substantive opposition no later than nine (9) court days before the continued hearing date, and Plaintiff to file and serve any reply no later than five (5) court days before the continued hearing date. All sanctions issues are be reserved for the continued hearing.<sup>3</sup>

On June 9, 2026, the Court and parties will select a continued hearing date.

4.

| CASE #      | CASE NAME                                | HEARING NAME              |
|-------------|------------------------------------------|---------------------------|
| CVRI2407127 | MARQUEZ VS<br>MERCEDES-BENZ USA,<br>LLC. | MOTION FOR ATTORNEYS FEES |

**Tentative Ruling:**

**Summary of Ruling:** The Court grants the motion in part. Plaintiff is awarded \$33,202.50 in fees and \$1,773.60 in costs.

**Factual / Procedural Context:**

This is a lemon law case. On May 10, 2022, Plaintiff Alexandria Marquez (“Plaintiff”) purchased a new 2022 Mercedes-Benz C Class C 300 (“Vehicle”) that was manufactured and distributed by Defendant Mercedes-Benz USA, LLC (“Mercedes” or “Defendant”). Plaintiff alleges that the Vehicle was delivered with serious defects and nonconformities to warranty. Plaintiff delivered the Vehicle to authorized repair agents on multiple occasions, but Mercedes and its authorized repair facilities, including Defendant Mercedes-Benz of Temecula (“Dealership”) were unable to cure the defects. Plaintiffs allege that Mercedes refused to repurchase the Subject Vehicle in violation of the Song Beverly Consumer Warranties Act (“Song Beverly Act”).

On December 20, 2024, Plaintiff filed her Complaint. She asserts four causes of action for: (1) Violation of the Songe Beverly Act—Breach of Express Warranty; (2) Violation of the Song Beverly Act—Breach of Implied Warranty; (3) Violation of the Song Beverly Act Section 1793.2(b) and (4) Violation of Civil Code Section 1796.5.

Plaintiff now moves for \$33,702.50 in fees and \$1,1773,60 in costs (total \$35,476.10) as the prevailing party under the Song Beverly Act. Plaintiff argues that the rates and hours were reasonable and necessary. Plaintiff argues that the complexity of the case does not determine the reasonableness of the billing rate. Plaintiff argues that the reasonableness of the rates may be based on counsel’s affidavits without supporting evidence, although the rates requested are reasonable based on the United States Consumer Law Survey and Laffey Matrix. Plaintiff argues that the Court may not apply an across-the-board negative multiplier. Plaintiff argues that the hours incurred for the fee motion are recoverable. Plaintiff argues that she is entitled to costs and expenses.

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<sup>3</sup> Plaintiff seeks sanctions against Defendant in the amount of \$1,410.00.